

Attachment 4b - On/Off Ramping Procedures
Front Range Multiple Award Construction Contract (FRMACC)
RFP # FA251719RA016

1. **ON-RAMPING:** The Government, at its sole discretion, may choose to On-Ramp any number of Indefinite-Delivery/Indefinite-Quantity (IDIQ) contracts at any time during the term of the FRMACC IDIQ contract: 1) to ensure an adequate number of awardees are available to provide the level of effort and competition needed to support all FRMACC locations, 2) to replace poor performing IDIQ awardees, 3) to replace IDIQ awardees within their assigned tier level who fail to propose on at least 75% of all task order proposal requests, for each organization, annually from date of contract award, or 4) when the Contracting Officer (CO) determines it is in the Government's best interest.

Upon contract award, a maximum of four (4) FRMACC IDIQ contracts (a maximum of two (2) in each tier) will be awarded with an effective date of "To Be Determined (TBD)" for "On-Ramping" purposes. However, the Government reserves the right to award more, less, or no contracts at all, if determined to be in the best interest of the Government. The Government also reserves the right to on-ramp additional contractors during the life of this IDIQ contract by using one (1) of the following methods:

Method 1:

- a. The Government will select the highest-rated TBD IDIQ awardee(s), for either or both tiers. TBD IDIQ awardee(s) in Tier 1 must be an active participant in the SBA's 8(a) program to be considered eligible for on-ramping purposes. TBD awardee(s) in Tier 2 must be a small business to be considered eligible for on-ramping purposes.
- b. As described in FAR Part 9.104, the Government will conduct a contractor responsibility determination annually, at a minimum and reserves the right to conduct another responsibility determination prior to on-ramping a TBD IDIQ awardee. If determined responsible, the Government will bilaterally modify the TBD effective date of the TBD awardee to activate it as of the modification date, or an agreed upon date by both parties.
 - i. If a TBD IDIQ awardee is found non-responsible, the CO will comply with FAR 19.6, *Certificates of Competency and Determinations of Responsibility*. TBD IDIQ awardees determined to be non-responsible may be terminated upon SBA concurrence.
 - ii. If the TBD IDIQ awardee does not accept the Government's bilateral modification action to make the IDIQ contract effective, the Government will off-ramp that TBD IDIQ awardee and the next highest-rated TBD IDIQ awardee will be considered for on-ramping.
- c. On-Ramp IDIQ contracts will be made effective under the originally awarded FRMACC IDIQ terms and conditions. If any adjustments need to be made to the terms and

conditions (e.g., to account for any contract modifications), the Government will issue a bilateral modification to the newly-effective IDIQ contract making it consistent with the existing IDIQ contracts.

- d. Within 30 days, the Government will notify all existing IDIQ awardee(s) of any on-ramped contractor(s).
- e. The newly on-ramped effective IDIQ awardee will immediately be able to compete for task orders in their corresponding tier. The overall contract ceiling and contract length will not be extended for newly on-ramped effective IDIQ awardees.

Method 2:

- a. If for any of the reasons stated in the On-Ramping procedures above, the Government may resolicit this requirement by reopening competition to unsuccessful awardees, off-ramped contractors, and/or other interested parties. This could happen at any time during the term of the FRMACC IDIQ contract to on-ramp new awardees for either or both tiers utilizing the same evaluation criteria used in the initial FRMACC awards.
 - b. When a re-competition to on-ramp a new contractor(s) is determined to be in the best interest of the Government, the Government will advertise this information on the Federal Business Opportunities (FedBizOpps) website at <https://www.fbo.gov/>. Current effective IDIQ awardees will not need to re-compete.
 - c. Within 30 days, the Government will notify all existing IDIQ awardee(s) of any on-ramped contractor(s).
 - d. New FRMACC IDIQ awardee(s) will compete with the existing FRMACC IDIQ awardees for all task orders within their respective tier (excluding the need to meet the minimum guarantee amount). The overall contract ceiling and contract length will not be extended for new on-ramp effective IDIQ awardees.
2. **OFF-RAMPING:** While it is the Government's intent to maintain a strategic relationship with IDIQ contractors for the duration of the FRMACC, the Government may, at its sole discretion, choose to off-ramp an IDIQ awardee at any time during the term of the FRMACC IDIQ contract: 1) to replace IDIQ awardees with poor performance (e.g., late performance or being assessed liquidated damages on task orders, overall performance assessment rating of Marginal or Unsatisfactory in the Contractor Performance Assessment Reporting System (CPARS), unresponsiveness to warranty work, failure to provide responsive customer service, unsafe site conditions, etc.), 2) to replace IDIQ awardees within their assigned tier level who fail to propose on at least 75% of all task order proposal requests, for each organization, annually from date of contract award (excludes Tier 1 awardees who choose not to participate in competitive/rotational direct award task order proposal requests for Tier 2), or 3) if the TBD IDIQ awardee does not accept the Government's bilateral modification action to make the IDIQ contract effective.

The Government intends to review annually, at the anniversary date of the contract award, the overall performance of the effective IDIQ contract holders in both tiers. Following the review, the Government reserves the right to off-ramp contractors during the life of this IDIQ contract by using one (1) of the following approaches: 1) termination in accordance with FAR Part 49, or 2) by not exercising an option in accordance with FAR Part 17.

For effective IDIQ awardees where the Government decides not to exercise the option, the Government will provide a 30-calendar day written notice of its intention to off-ramp. If the Government determines an effective IDIQ awardee will be off-ramped, the effective IDIQ awardee will not be allowed, as of that date, to actively participate in upcoming task order proposal requests. However, the effective IDIQ awardee will be required to complete all task orders awarded prior to the off-ramp determination date. For TBD awardees, no written notice will be given.